

Multiple Choice (10 marks)

1. The legislative branch of the United States government has the power to _____ the law.
 - (a) interpret
 - (b) make
 - (c) enforce
 - (d) override
2. On what grounds does John Finnis reject Hume's conception of practical reason?
 - (a) That natural law corresponds to positive law.
 - (b) That Hume is a legal positivist.
 - (c) That syllogistic logic is false.
 - (d) That human reason can help us to determine what constitutes a worthwhile life.
3. Which of the following criticisms of Llewellyn's distinction between the grand and formal styles of legal reasoning is the most compelling?
 - (a) There is no distinction between the two forms of legal reasoning.
 - (b) Judges are appointed to interpret the law, not to make it.
 - (c) It is misleading to pigeon-hole judges in this way.
 - (d) Judicial reasoning is always formal.
4. According to Malinowski, the Trobriand Islanders organized their society around what concept?
 - (a) Conflict.
 - (b) Love.
 - (c) War.
 - (d) Reciprocity.
5. Who was an exponent of "natural law with a variable content"?
 - (a) John Rawls
 - (b) Stammler
 - (c) Jerome Hall
 - (d) John Finns

True / False (10 marks)

Answer True or False

6. True or False: Kant's philosophy prioritizes social morality over individual morality, treating individuals as less significant.
7. True or False: The rise of Fascism during the early 20 th century was a major factor in the revival of natural law thought.
8. True or False: The U.S. Congress is empowered by the Commerce Clause to enact executive orders regulating foreign and interstate commerce.
9. True or False: In Hohfeld's scheme of jural relations, power and liability are contradictory concepts that cannot coexist.
10. True or False: Unlawful homicide committed by a minister abroad is considered a private act (jure gestionis) under international law.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the primary focus of the European Convention on Human Rights and analyze its significance in the protection of civil and political rights within a constitutional framework.
12. Discuss Durkheim's concepts of mechanical and organic solidarity, and analyze how each type influences the nature of law within society.

End of Paper